



US0D1090276S

(12) **United States Design Patent** (10) **Patent No.:** **US D1,090,276 S**
Fenech et al. (45) **Date of Patent:** **** Aug. 26, 2025**

(54) **CONFECTIONERY BOTTLE**

(56) **References Cited**

(71) Applicant: **PERFETTI VAN MELLE BENELUX B.V.**, HK Breda (NL)

U.S. PATENT DOCUMENTS

2,726,004 A 12/1955 Mcleod
2,825,085 A 3/1958 Ingraham
(Continued)

(72) Inventors: **Lou Fenech**, Morristown, NJ (US); **Ian Capron**, Phoenixville, PA (US); **Perseus Max McDaniel**, Tukwila, WA (US); **Corbin Jeffery Gilchrist**, Bel Air, MD (US); **Katherine Elizabeth DeWitt**, Shawnee, KS (US); **Jennifer Dami**, Alexandria, VA (US)

FOREIGN PATENT DOCUMENTS

CA 208068 * 11/2021
EM 008637888-0001 7/2021
(Continued)

(73) Assignee: **PERFETTI VAN MELLE BENELUX B.V.**, Breda (NL)

OTHER PUBLICATIONS

(**) Term: **15 Years**

SYBL Dividers Cereal Containers, posted at Amazon.com on Oct. 12, 2019, [site visited Feb. 11, 2025]. Available from internet, URL: <<https://www.amazon.com/Dividers-Containers-Airtight-Separate-Dispenser/dp/B07Z19X8N6/>> (Year: 2019).*

(21) Appl. No.: **29/978,074**

(Continued)

(22) Filed: **Dec. 11, 2024**

Primary Examiner — Dana K Weiland
Assistant Examiner — Chariton Alexakis
(74) *Attorney, Agent, or Firm* — WHDA, LLP

Related U.S. Application Data

(62) Division of application No. 29/769,495, filed on Feb. 5, 2021, now Pat. No. Des. 1,060,049.

(51) **LOC (15) Cl.** **09-01**

(52) **U.S. Cl.**

USPC **D9/738; D9/741; D7/596**

(58) **Field of Classification Search**

USPC D9/434, 435, 443, 454, 500, 502, 503,
D9/504, 516, 520, 524, 530, 537, 539,
D9/540, 549, 558, 559, 564, 690, 715,
D9/719, 738, 741; D7/507, 538, 541,
D7/542, 545, 596, 601, 602, 612, 615,
D7/701, 703, 705, 706, 707, 708;
D3/201, 203.2, 273, 302; D28/91, 91.1
CPC B65D 1/00; B65D 1/02; B65D 1/0223;
B65D 23/00; B65D 2501/00; B65D
2501/0009; B65D 43/161; B65D 43/169;

(Continued)

(57)

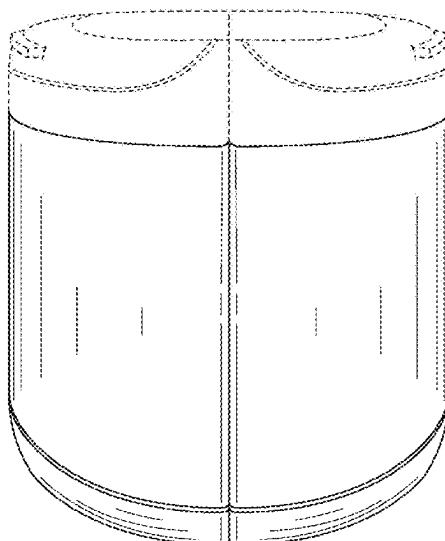
CLAIM

The ornamental design for a confectionery bottle, as shown and described.

DESCRIPTION

FIG. 1 is a perspective view of a confectionery bottle, showing our new design;
FIG. 2 is a front elevation view thereof;
FIG. 3 is a rear elevation view thereof;
FIG. 4 is a side elevation view thereof;
FIG. 5 is another side elevation view thereof;
FIG. 6 is a top plan view thereof; and,
FIG. 7 is a bottom plan view thereof.
The broken line disclosure forms no part of the claimed design.

1 Claim, 4 Drawing Sheets



(58) **Field of Classification Search**

CPC B65D 21/0204; B65D 51/18; A45F 3/16;
A45F 3/18; A47G 19/22; A47G 19/24;
A47G 19/2205

See application file for complete search history.

(56)

References Cited

U.S. PATENT DOCUMENTS

4,189,057 A 2/1980 Morille
D299,698 S 2/1989 DeBose, Jr.
D321,128 S 10/1991 DeBose, Jr.
D323,108 S 1/1992 Green
5,158,191 A 10/1992 Douglas et al.
D374,538 S 10/1996 Hanson et al.
D385,184 S 10/1997 Binter
D394,204 S 5/1998 Seddon
6,311,859 B1 * 11/2001 Haas B65F 1/1607
220/628
D453,892 S 2/2002 Lindsay et al.
D489,986 S 5/2004 Case et al.
D499,651 S 12/2004 Gong
D506,933 S * 7/2005 Kearney D9/743
D537,711 S 3/2007 Limber
D537,727 S 3/2007 Hutton
D539,167 S * 3/2007 Garrett D9/563
D555,013 S 11/2007 Bartolone et al.
D556,056 S 11/2007 Thomas et al.
D574,709 S 8/2008 Crotts et al.
D596,035 S 7/2009 Shin et al.
D610,875 S 3/2010 Wingfield et al.
D623,064 S 9/2010 Salmon et al.
D641,634 S 7/2011 Fraissat
D649,887 S 12/2011 Diss
D693,697 S 11/2013 Revivo
D724,893 S * 3/2015 Dirks D7/510
D729,577 S 5/2015 Dirks

9,216,840 B2 12/2015 Metzger et al.
D759,332 S 6/2016 Basmajian et al.
D767,342 S * 9/2016 Alyas D7/590
D803,071 S * 11/2017 Telu-Zoltner D9/747
D805,401 S * 12/2017 Boctor D9/741
D829,567 S * 10/2018 Ayala Figueredo D9/741
D957,263 S * 7/2022 Tse A45D 40/22
D9/741

D1,004,439 S 11/2023 Agazzi et al.
D1,060,049 S * 2/2025 Fenech D9/741
2013/0037426 A1 * 2/2013 Shen B65D 81/3288
215/6
2015/0102041 A1 4/2015 Lee
2023/0143861 A1 5/2023 Fenech et al.

FOREIGN PATENT DOCUMENTS

EM 008637888-0007 * 7/2021
KR 300859624.0000 * 10/2015

OTHER PUBLICATIONS

Edossa Dual-Use Straw Bottle, posted at Amazon.com on Feb. 16, 2023, [site visited Feb. 11, 2025]. Available from internet, URL: <<https://www.amazon.com/EDOSSA-Dual-Use-Capacity-Double-Sided-Two-Layer/dp/B0BVYJGHSC>> (Year: 2023).
Ice Breaker Ice Cubes, posted at Amazon.ca on Apr. 30, 2016, [site visited Sep. 6, 2024]. Available from internet, URL: <<https://www.amazon.ca/BREAKERS-Ice-Cubes-Tropical-Freeze/dp/B01916AD30/>> (Year:2016).
iDesign Plastic Canister, posted at Amazon.com on Jun. 6, 2017, [site visited May 14, 2024]. Available from intrnet, URL: <<https://www.amazon.com/iDesign-Collection-Canister-Cosmetic-Organizer/dp/B072QFSQDG/>>> (Year:2017).

* cited by examiner

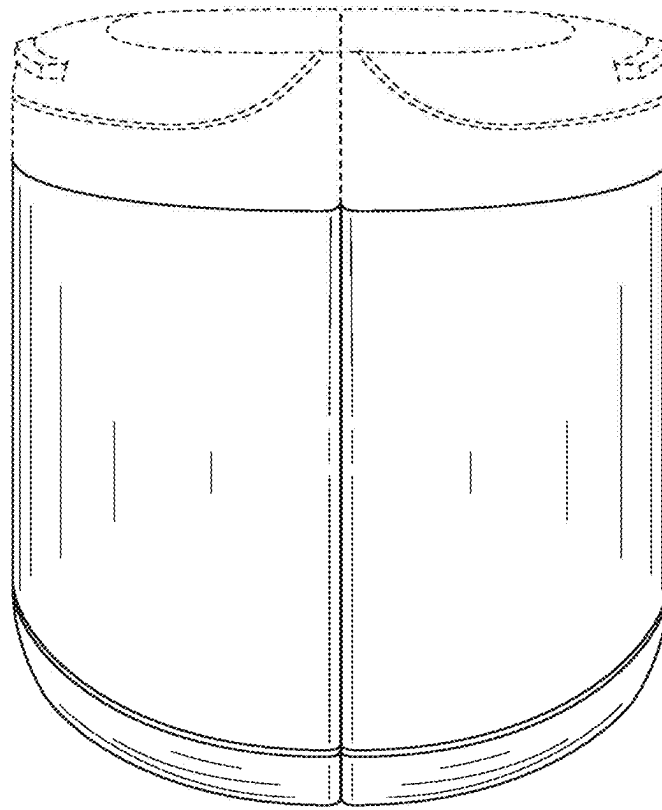


Fig. 1

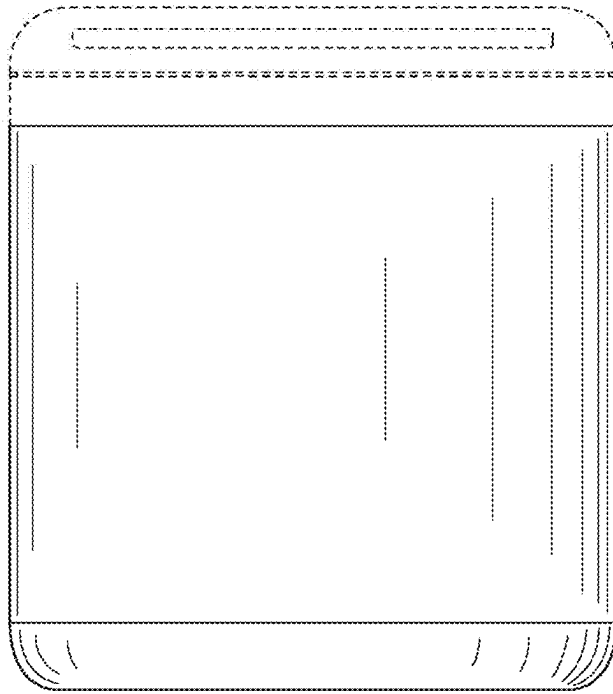


Fig. 2

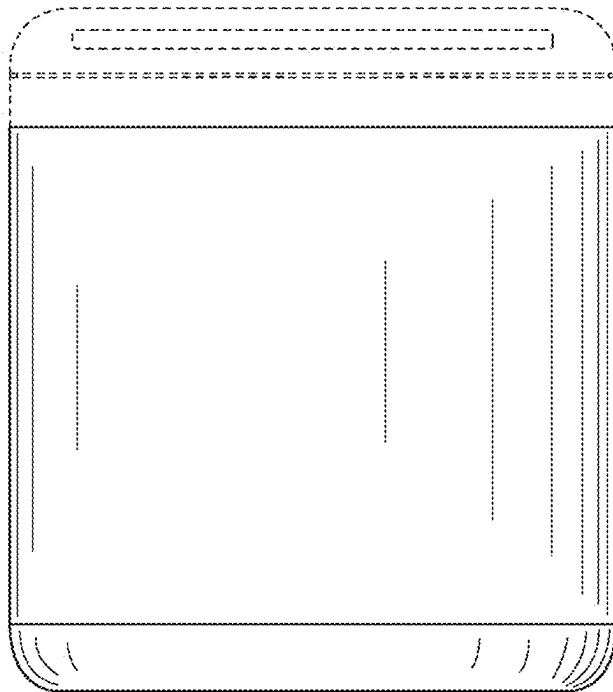


Fig. 3

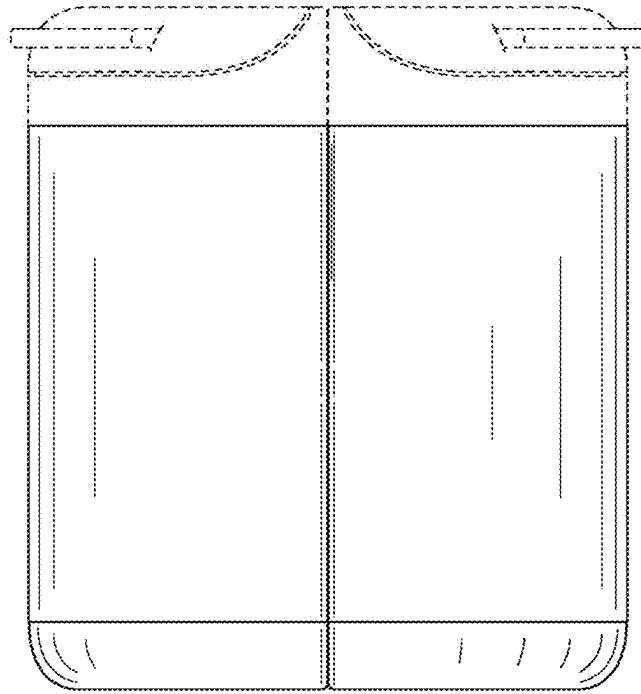


Fig. 4

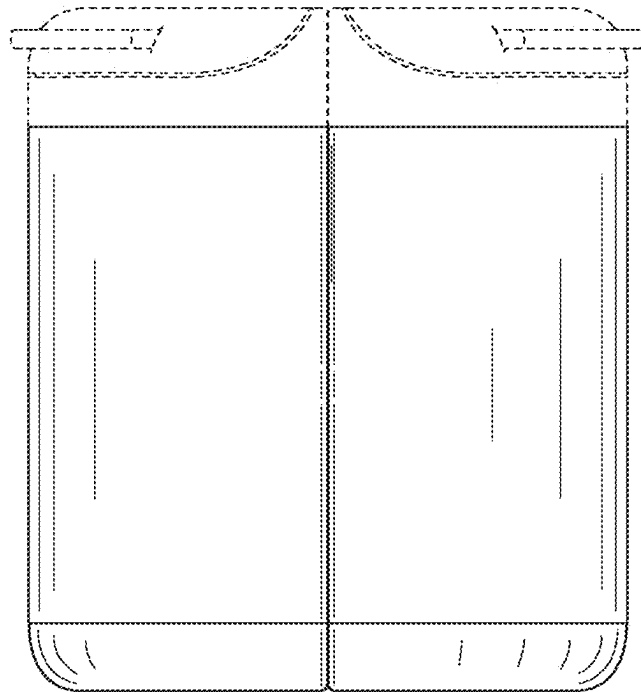


Fig. 5

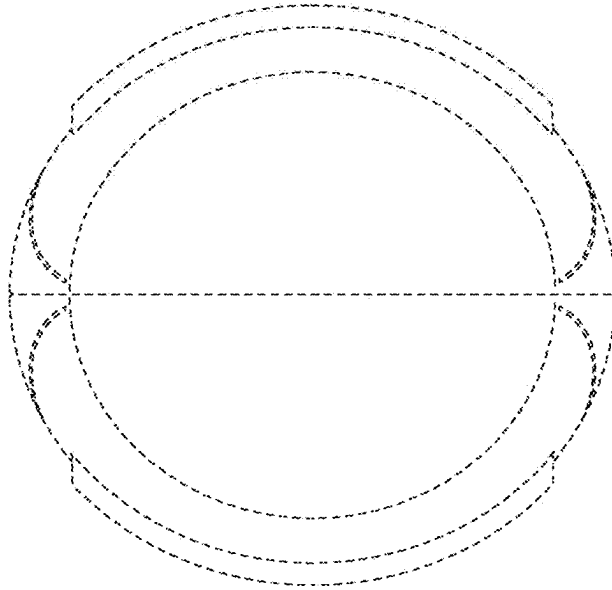


Fig. 6

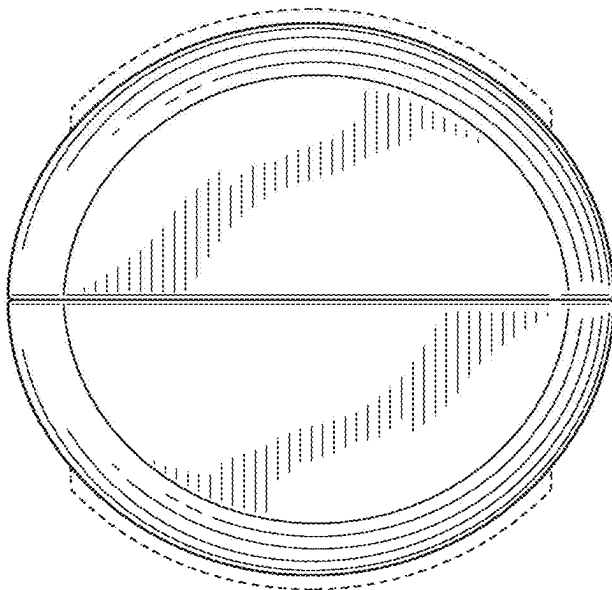


Fig. 7